

25NNCV02484 25NNCV02484

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-16

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[TENTATIVE] ORDER GRANTING IN PART AND DENYING IN PART DEFENDANT'S MOTION TO MODIFY DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS DIRECTED TO CATHAY BANK

I. INTRODUCTION

On April 10, 2025, Plaintiff Tung & Associates APLC ("Plaintiff") filed this action against Defendants Kok Chye Tan and KC Tan MD Medical Corporation ("Tan Corp."), alleging causes of action for (1) breach of contract, (2) services rendered, (3) account stated, (4) open book account, (5) fraud, and (6) passing bad checks/checks with insufficient funds under Civil Code section 1719. The action arises from unpaid legal fees and a \$200,000 check provided by Defendants to Plaintiff that was subsequently returned unpaid.

On June 4, 2025, Defendants filed a cross-complaint against Plaintiff and Antony K. Tung, alleging causes of action for (1) breach of contract, (2) breach of fiduciary duty, (3) intentional infliction of emotional distress, and (4) negligent infliction of emotional distress.

On July 17, 2026, Tan Corp. filed the instant motion to modify the deposition subpoena for business records directed to Cathay Bank. Plaintiff filed an opposition on September 2, 2026, and Tan Corp. filed a reply on September 9, 2026.

II. LEGAL STANDARD

"Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum." (Code Civ. Proc., § 1985.3, subd. (g).) "Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records." (Code Civ. Proc., § 1985.3, subd. (g).)

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).) A party to an action may bring a motion pursuant to CCP § 1987.1(a). (Code Civ. Proc., § 1987.1, subd. (b)(1).)

"In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things." (Board of Registered Nursing v. Superior Court of Orange County (2021) 59 Cal.App.5th 1011, 1030.) "To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena." (Ibid.)

"For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546 [italics in original].) Generally, all unprivileged information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence.¿ (Code Civ. Proc. § 2017.010; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.)

There is an interest "in precluding the dissemination or misuse of sensitive and confidential information." (Grafilo v. Wolfsohn (2019) 33 Cal.App.5th 1024, 1033-34 [citation omitted, internal quotations omitted].) "The right to privacy, however, is not absolute." (Id. at p. 1034 [citation omitted].) "Potential invasions of privacy are ordinarily evaluated by balancing the privacy interest at stake and the seriousness of the threatened invasion with the strength of legitimate and important countervailing interests." (Ibid. [citation omitted].) "On occasion [a party's] privacy interests may give way to the opponent's right to a fair trial. Thus, courts must balance the right of civil litigants to discovery relevant facts against the privacy interests of persons subject to discovery." (John B. v. Superior Court (2006) 38 Cal.4th 1177, 1199 [citation omitted].) A party seeking to limit discovery must show good cause for such limitation. (Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.) "In law and motion practice, factual evidence is supplied to the court by way of declarations." (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224.)

III. ANALYSIS

Defendant Tan Corp moves under Code of Civil Procedure section 1987.1 to modify, rather than quash, Plaintiff Tung & Associates APLC's deposition subpoena for business records directed to Cathay Bank. Tan Corp. seeks to limit the subpoena primarily to records concerning Check No. 101 and the account balances through April 4, 2023, and to exclude transaction records occurring after that date.

Tan Corp. argues that Plaintiff's fifth and sixth causes of action are based on allegations that Dr. Tan caused the \$200,000 check not to be honored. According to Tan Corp., Cathay Bank returned the check on April 4, 2023, as "Signature Irregular," the account contained sufficient funds to cover the check at that time and Dr. Tan did not direct the Bank to dishonor the check. Tan Corp. therefore contends that transactions occurring after April 4, 2023, are irrelevant and that disclosure of those records would unnecessarily invade Dr. Tan's financial privacy and potentially disclose the financial information of third parties. (Motion, pp. 4-7.)

In opposition, Plaintiff argues that the documents within the conceded categories should be produced immediately. Plaintiff next argues that the post-April 4, 2023, records are directly relevant because the Complaint alleges that Defendants contacted the Bank and/or withdrew funds to prevent the check from clearing, and Dr. Tan's verified discovery responses identify communications with Cathay Bank concerning the check on April 5, 2023. Plaintiff also argues that subsequent account activity is relevant circumstantial evidence of Defendants' intent. Plaintiff further argues that Tan Corp. has not made a sufficient showing of a privacy interest and that any privacy concerns can be addressed through a protective order. (Opposition, pp. 6-13.)

Finally, Plaintiff proposes, as an alternative to denying the motion, limiting production to: (1) transaction-level records, including statements, transaction histories, and ledger records, from March 15 through April 30, 2023; (2) balance data only, without transaction detail, for the remainder of the subpoena's defined period; (3) production of all financial records subject to the stipulated protective order; and (4) redaction of data-security information only. (Opposition, p. 13.)

The Court agrees that the April 4, 2023, cutoff is too restrictive, because discovery responses identify communications with a Cathay Bank representative about the check on or about April 5, 2023. (Opposition, pp. 7-8.) Thus, the Court is not persuaded that the records post April 4, 2023, are categorically irrelevant.

The Court also finds that account activity for a reasonable period following the return of the check may be relevant to Plaintiff's allegations concerning Defendants' intent. As Plaintiff notes, intent may be established through circumstantial evidence, including subsequent conduct and a failure to attempt performance. (Opposition, pp. 8-10, citing *Tenzer v. Superscope, Inc.* (1985) 39 Cal.3d 18, 30-31.)

However, the Court agrees with Tan Corp, that unrestricted disclosure of transaction-level records for the entire period sought is broader than necessary. The Subpoena seeks confidential financial information that may include transactions unrelated to the claims at issue and information concerning third parties. Thus, the Court finds that Plaintiff's proposed limitation of the transaction-level records to March 15 through April 30, 2023, together with a protective order and appropriate redactions, adequately addresses Plaintiff's discovery needs while limiting disclosure of unrelated financial information.

Therefore, the Court GRANTS in part the motion to modify the subpoena and modifies the subpoena as follows: (1) transaction-level records, including account statements, transaction histories, and ledger records, shall be limited to March 15 through April 30, 2023; (2) for the remainder of the subpoena's defined period of February 1 through June 30, 2023, production shall be limited to balance data without transaction-level detail; (3) all financial records shall be produced subject to the stipulated protective order; and (4) data-security information may be redacted

IV. CONCLUSION AND ORDER

The Court GRANTS IN PART and DENIES IN PART Tan Corp's motion to quash/ modify subpoena. The Court modifies the subpoena as follows: (1) transaction-level records, including account statements, transaction histories, and ledger records, shall be limited to March 15 through April 30, 2023; (2) for the remainder of the subpoena's defined period of February 1 through June 30, 2023, production shall be limited to balance data without transaction-level detail; (3) all financial records shall be produced subject to the stipulated protective order; and (4) data-security information may be redacted.

Tan Corp is to give notice

Dated: September 16, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT